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Q1. Which Article establishes the office of the President?

RRB NTPC UG CBT-01 2024 (04 Sept, 2025 Shift 3)

A. Article 75
B. Article 53
C. Article 74
D. Article 52

- Article 52: "There shall be a President of India"
  - President is covered in Part V of the Constitution, Articles 52 to 62
  - Article 63 is where the Vice-President begins

Article-wise list for the President:
- Art 52 – Office of the President
- Art 53 – Executive power of the Union is vested in the President
- Art 54 – Electoral college
- Art 55 – Manner of election
- Art 56 – Term of office (5 years)
- Art 57 – Eligibility for re-election
- Art 58 – Qualifications
- Art 59 – Conditions of office
- Art 60 – Oath
- Art 61 – Impeachment
- Art 62 – Time of holding election to fill a vacancy

- Art 58 qualifications:
  - Citizen of India
  - At least 35 years of age
  - Qualified to be elected as a member of the Lok Sabha
- Art 57: can be re-elected any number of times, unlike the USA (maximum two terms)

Q2. What specific provision concerning the President of India is outlined in Article 59(3) of the Constitution of India?

RRB NTPC Graduation CBT-01 2024 (20 Jun, 2025 Shift 3)

A. Salary and privileges of the President
B. Powers of the President
C. Election of the President
D. Impeachment of the President

- Article 59 = Conditions of the President's office
  - Clause 1: President must not be a member of Parliament or a State Legislature
  - Clause 2: President must not hold an office of profit (not defined anywhere in the Constitution)
  - Clause 3: Salary and privileges of the President
- Salary and privileges cannot be reduced during the President's term
- Salary is decided by Parliament
- Sources borrowed from:
  - USA – office of the President; office and removal of President and Vice-President
  - Ireland – election procedure of the President.

- Why salary cannot be reduced: it is a charged expenditure on the Consolidated Fund of India (Art 266(1))
  - Two kinds of expenditure from the Consolidated Fund: charged expenditure and expenditure made from the fund
  - Charged expenditure is the non-votable part of the budget (no voting allowed on it)
  - Salaries of the President and other constitutional posts come from it
- Other options, with their Articles:
  - Election of the President: Art 54 (electoral college) and Art 55 (manner of election)
  - Impeachment: Art 61
- Electoral college: elected MPs + elected MLAs only
- Manner of election: Proportional Representation with Single Transferable Vote

Q3. What is the President's primary constitutional duty as per the oath under Article 60?

NTPC UG CBT-01 2025-26 (19 Jun, 2026 (12:45 PM - 2:15 PM)

A. Formulate policies for the governance of India
B. Manage finances for the governance of India
C. Preserve, protect and defend the Constitution
D. Control Council of Ministers headed by Prime Minister

- Oath is in Article 60
- President swears to preserve, protect and defend the Constitution
- That is why the President is removed on the ground of violation of the Constitution

- Oath is administered by the Chief Justice of India (CJI)
  - If the CJI is not available, the senior-most judge of the Supreme Court does it

Q4. What is the term of office for the President of India?

RRB NTPC UG CBT-01 2024 (14 Aug, 2025 Shift 3)

A. 5 years
B. Until removed by Parliament
C. 6 years
D. 4 years

- Term is 5 years (Art 56)
- Same 5-year term applies to the President, Vice-President and Governor

- Election to fill the vacancy (Art 62):
  - Normal end of term: new President must be chosen before the term ends
  - Vacancy by death, removal or resignation: new President within 6 months
- Example: Droupadi Murmu was elected in 2022; her term ends in 2027
- Resignation:
  - President resigns to the Vice-President
  - Vice-President resigns to the President

Q5. Which Article of the Indian Constitution deals with the impeachment procedure of the President?

RRB NTPC UG CBT-01 2024 (19 Aug, 2025 Shift 3)

A. Article 61
B. Article 66
C. Article 52
D. Article 54

- Other options:
  - Art 54 - electoral college
  - Art 52 - "There shall be a President of India"
  - Art 66 - election of the Vice-President

- Ground of impeachment: violation of the Constitution (not defined anywhere in the Constitution)
- Procedure borrowed from the USA
- No President has been impeached so far
- Procedure:
  - Resolution can start in either House
  - Notice must be signed by at least 1/4 of the members of that House
  - Presiding officer accepts it
  - Passed by a special majority: 2/3 of the total membership of both Houses

- It is a quasi-judicial process
- Both Houses have equal powers here
- President gets 14 days to put forward his own side

Q6. Which of the following executive powers is exercised by the President of India?

NTPC UG CBT-01 2025-26 (13 Jun, 2026 (12:45 PM - 2:15 PM)

A. Appointing Prime Minister and other Union Ministers on his advice
B. Appointing High Court judges and framing Supreme Court rules
C. Conducting elections to Parliament
D. Deciding the tenure of the Governors

- Appointment of the PM by the President, and of other ministers on the PM's advice, is under Art 75(1)

- President has three kinds of powers: executive, legislative and judicial
- Whatever power he uses, he acts on the advice of the Council of Ministers

- Wrong options:
  - High Court / Supreme Court judges are appointed by the President, but Supreme Court rules are framed by the Supreme Court itself
  - Elections to Parliament are conducted by the Election Commission of India
  - The tenure of the Governor is not decided by the President

Q7. If a new union territory is created, who will appoint its administrator?

NTPC UG CBT-01 2025-26 (09 May, 2026 (12:45 PM - 2:15 PM)

A. The President of India
B. The Chief Minister of the nearest state
C. The Parliament of India
D. The Prime Minister of India

- The President of India appoints the administrator of a new Union Territory

Q8. The President of India possesses the power to remove or recall officials such as Governors and Ambassadors. This power is exercised based on the advice of:

RRB NTPC Graduation CBT-01 2024 (24 Jun, 2025 Shift 3)

A. the Union Council of Ministers
B. the State Governments
C. the Supreme Court of India
D. a resolution passed by the Parliament

- Every power of the President, including this one, is used on the advice of the Union Council of Ministers

Q9. Who has the power to give directions to the State Government to ensure compliance with Union laws?

RRB NTPC UG CBT-01 2024 (14 Aug, 2025 Shift 2)

A. Prime Minister of India
B. Parliament of India
C. Supreme Court of India
D. President of India

- Article 256: the Union gives directions to the States; the President does it on behalf of the Union
- States must use their executive power in line with laws made by Parliament
- A State cannot act against a law made by Parliament

Q10. The President may return a non-money bill to Parliament for reconsideration for how many times?

NTPC UG CBT-01 2025-26 (18 Jun, 2026 (4:30 PM - 6:00 PM)

A. Twice
B. Any number of times
C. Once only
D. Never

- A non-money bill means an ordinary bill
- President can return it only once (suspensive veto)
- If Parliament passes it again, the President must give assent
- No bill becomes an Act without the President's assent (Art 111)

- Money bill:
  - Procedure: Art 109; definition: Art 110
  - Introduced only in the Lok Sabha
  - Certified as a money bill by the Lok Sabha Speaker
  - Brought on the prior recommendation of the President
  - Rajya Sabha can only recommend, not amend; Lok Sabha may or may not accept
  - Rajya Sabha has only 14 days; after that the bill is treated as passed by it

- Constitutional amendment bill: President has no veto at all
  - Made so by the 24th Constitutional Amendment Act, 1971
- Ordinary bill procedure: Art 107
- Deadlock between the Houses on an ordinary bill:
  - Art 108 provides a joint sitting
  - Deadlock arises when:
    - The second House rejects the bill passed by the first House
    - The first House rejects the amendments suggested by the second House
    - The second House takes no action for 6 months
  - President summons the joint sitting
  - Presided by the Lok Sabha Speaker; if absent, the Deputy Speaker of Lok Sabha; then the Deputy Chairman of Rajya Sabha
  - Rajya Sabha Chairman cannot preside because he is not a member of either House
  - Decided by simple majority, as per Lok Sabha rules
  - Borrowed from Australia
  - Held 3 times so far: Dowry Prohibition Bill, Prevention of Terrorism Bill, Banking Service Commission Bill

Q11. The President of India's "pocket veto" refers to: _____.

NTPC UG CBT-01 2025-26 (15 Jun, 2026 (12:45 PM - 2:15 PM)

A. vetoing a law secretly
B. returning a bill for reconsideration
C. refusing to sign the budget
D. keeping a bill pending indefinitely

- President neither gives assent nor returns the bill; he simply does not act on it
- No time limit for the Indian President
  - US President gets 10 days to respond
  - So the Indian President's "pocket" is said to be very deep
- Used once: Giani Zail Singh in 1987 on the Postal (Amendment) Bill, during the Rajiv Gandhi government

- Three types of veto: absolute, suspensive, pocket
  - Absolute veto: President refuses assent to the bill
  - Suspensive veto: President returns the bill once
  - Pocket veto: President neither assents to nor rejects the bill, keeping it pending indefinitely.
- Where each applies:
  - Ordinary bill: all three
  - Money bill: absolute and pocket only (cannot be returned)
  - Constitutional amendment bill: none

Q12. Under which Article of the Indian Constitution may the President of India proclaim President's Rule when Constitutional machinery fails in a state?

NTPC UG CBT-01 2025-26 (07 May, 2026 (9:00 AM - 10:30 AM)

A. Article 350
B. Article 249
C. Article 356
D. Article 355

- Article 356 allows the President to proclaim President's Rule in a State
- Proclamation needs Parliament's approval within 2 months by simple majority
- Manipur has had President's Rule the most times: 11 times

- Art 355 gives the Union the duty to protect and defend the States against external aggression and similar threats
- Two grounds for President's Rule:
  - Breakdown of constitutional machinery in the State
  - State refuses to follow Union directions (Art 365)

Q13. Which Article gives the President of India the power to grant pardons and reprieves?

RRB NTPC UG CBT-01 2024 (09 Sept, 2025 Shift 3)

A. Article 72
B. Article 76
C. Article 74
D. Article 75

- Article 72 = judicial power of the President
- Types of clemency:
  - Pardon: completely absolves the person; all charges and sentence are removed
  - Commutation: changes the form of punishment
  - Remission: changes the duration of the sentence
  - Respite: reduces the sentence for a special reason such as health grounds
  - Reprieve: temporary hold on the sentence
- A death-sentence convict who fails in the High Court and Supreme Court can file a mercy petition with the President

- Art 76 – Attorney General of India
  - Highest law officer of the country
  - Part of the Union Executive
  - Appointed by the President
  - Qualification: same as a Supreme Court judge
    - 5 years as a High Court judge, or 10 years as a High Court advocate, or a distinguished jurist in the President's opinion
  - Duty: advises the government on legal matters
  - Has right of audience in all courts of India
  - Holds office during the pleasure of the President
  - May do private legal practice; is not a full-time employee of the government
  - First Attorney General and the longest serving: M.C. Setalvad
  - Current Attorney General: R. Venkataramani

- Art 165 – Advocate General (highest law officer of a State)
  - Appointed by the Governor
- Solicitor General assists the Attorney General
  - Not a constitutional post
  - Appointed by the Appointments Committee of the Cabinet, headed by the PM
- Ambassadors are appointed by the President of the country

- Union Executive (Arts 52 to 78, Chapter 1 of Part V) includes: President, Vice-President, PM, Council of Ministers, Attorney General
- Part V (the Union) runs from Art 52 to Art 151

Q14. Which of the following is a discretionary power of the President of India?

RRB NTPC UG CBT-01 2024 (12 Aug, 2025 Shift 1)

A. Dissolving the Lok Sabha without advice
B. Appointing the Chief Justice of India
C. Appointing a Prime Minister when no party has a clear majority
D. Giving assent to a Money Bill

- President normally has no discretion; he acts on the advice of the Council of Ministers
- Discretion arises only when there is no Council of Ministers to advise him
- When no party has a clear majority:
  - President invites the leader of the single largest party to be PM
  - That leader is asked to prove majority on the floor quickly
- Example: in 2024, BJP fell short of a majority and showed its numbers with TDP, JD(U) and LJP

- The President's discretion is situational; it is not written in the Constitution
- Governor has discretion written in the Constitution in some cases
  - Example: Art 200 - Governor can reserve a State bill for the President without ministerial advice

- Legislative power of the President = Art 123 (ordinances)
  - Used on the advice of the Council of Ministers
  - Issued when one or both Houses are not in session
  - Must be approved within 6 weeks of Parliament meeting again, or it lapses
  - Governor's ordinance power is Art 213
    - Memory trick: swap the first two digits of 123 to get 213, or add 90 to 123

Q15. Consider the pairs: 1. Art 63 - Vice-President of India; 2. Art 64 - Ex-officio Chairman of Council of States; 3. Art 65 - Act as President during absence; 4. Art 66 - Election of Vice-President. Which are correctly matched?

NTPC Graduation CBT-01 2025-26 (17 Mar, 2026 Shift 3)

A. 1 and 2 only
B. 2, 3 and 4 only
C. 1, 2 and 3 only
D. 1, 2, 3 and 4

- Art 63 - there shall be a Vice-President of India
- Art 64 - Vice-President is the ex-officio Chairman of Rajya Sabha
  - No separate election for the Chairman; whoever becomes VP automatically becomes Chairman
- Art 65 - VP acts as President when the President is absent
- Art 66 - election of the Vice-President

- Electoral college of the Vice-President:
  - All MPs: elected and nominated
  - No MLAs
- Electoral college of the President: only elected members of the Parliament, and MLAs are included
- Tip: the body that impeaches the President (Art 61) is the one that elects the Vice-President

- Art 71: disputes about the election of the President and Vice-President are decided only by the Supreme Court (exclusive power)

Q16. Which Article prohibits judicial inquiry into ministerial advice tendered to President during constitutional functioning?

NTPC UG CBT-01 2025-26 (20 Jun, 2026 (9:00 AM - 10:30 AM)

A. Article 78
B. Article 76
C. Article 72
D. Article 74

- Art 74(1): a Council of Ministers headed by the Prime Minister aids and advises the President, who acts on that advice
- Art 74(2): courts cannot inquire into what advice was given to the President
- The advice is binding on the President
  - Made binding by the 42nd Constitutional Amendment

- Art 78 - duties of the PM
  - PM is the link between the Council of Ministers and the President
  - Jawaharlal Nehru gives the President all information about the Council's decisions
  - That is why he is called the linchpin of the government
  - If one minister takes a decision that others do not know about, the President can ask the PM
- Real head: PM (de facto), head of government
- Nominal / titular head: President (de jure), head of state
- Other Articles in the options: Art 76 - Attorney

Q17. Who administers the oath of office and secrecy to the Union Ministers under Article 75(4) of the Constitution of India?

RRB NTPC Graduation CBT-01 2024 (18 Jun, 2025 Shift 2)

A. Chief Justice of India
B. Prime Minister
C. Vice President
D. President of India

- Under Art 75(4), the President gives the oath of office and secrecy to Union Ministers

- Art 75 clauses:
  - Clause 1: PM appointed by the President; other ministers on the PM's advice
  - Clause 2: ministers serve during the pleasure of the President; individually responsible to the President
  - Clause 3: collective responsibility
  - Clause 4: oath
  - Clause 5: a person can be a minister for up to 6 months without being a member of either House; membership must be taken within 6 months
  - Clause 6: salary and allowances decided by Parliament
- Art 99 is a different oath: oath of new Lok Sabha members, given by the Pro-tem Speaker
  - 18th Lok Sabha: pro-tem Speaker was Bhartruhari Mahtab

Q18. How many times may the President of India ask the Prime Minister to have an executive recommendation reconsidered by the Cabinet?

RRB NTPC Graduation CBT-01 2024 (14 Jun, 2025 Shift 2)

A. Twice
B. Only once
C. As many times as needed
D. It is at the President's absolute discretion without limits.

- President can send the advice back for reconsideration only once
  - Provided by the 44th Constitutional Amendment
- The reconsidered advice is binding on the President

Q19. Who among the following is the head of the Union Council of Ministers?

NTPC UG CBT-01 2025-26 (14 Jun, 2026 (4:30 PM - 6:00 PM)

A. Union Home Minister
B. President
C. Attorney General of India
D. Prime Minister

- Prime Minister is the head of the Council of Ministers
- Hence he is called the head of government
- Real power lies with him

Q20. Consider: 1. President administers oaths to PM; 2. President can dismiss PM arbitrarily; 3. If PM loses Lok Sabha confidence, must resign or be dismissed. Which are correct?

NTPC Graduation CBT-01 2025-26 (25 Mar, 2026 Shift 3)

A. 1 only
B. 1 and 2 only
C. 1 and 3 only
D. 2 and 3 only

- Statement 1 is correct: the President gives the oath to the PM
- Statement 2 is wrong:
  - Ministers hold office during the pleasure of the President (Art 75(2))
  - But this does not allow arbitrary removal, because the Council is collectively responsible to the Lok Sabha
- Statement 3 is correct:
  - Loss of confidence means the PM has no majority in the Lok Sabha
  - A no-confidence motion can then be moved; if passed, the PM must resign

- If the PM dies, resigns or is dismissed, the entire Council of Ministers ends
  - The Lok Sabha need not be dissolved

- Collective responsibility is to the Lok Sabha (House of the People); individual responsibility is to the President
- No-confidence motion, or any motion that can bring down the government, is moved only in the Lok Sabha
  - Exception: the Motion of Thanks (Art 87) is put to vote in both Houses
    - If it fails in the Lok Sabha, the government falls
    - If it fails in the Rajya Sabha, nothing happens
  - Reason: Rajya Sabha is a permanent house; Lok Sabha is subject to dissolution

- No-confidence motion vs Censure motion:
  - No-confidence: No specific reason or charge needs to be stated, needs support of at least 50 members to be admitted; moved only against the entire Council of Ministers; if passed, resignation is mandatory
  - Censure: no approval needed to move it, but the reason must be stated; can be moved against a single minister or the entire Council; if passed, resignation is not

Q21. In the Indian parliamentary system, who has the authority to dissolve the Lok Sabha before its term expires?

RRB NTPC Graduation CBT-01 2024 (20 Jun, 2025 Shift 1)

A. The Prime Minister advises the President to dissolve it.
B. The Council of Ministers passes a resolution.
C. The Chief Justice of India orders dissolution.
D. The Speaker of Lok Sabha takes the decision.

- Art 85: the President summons the Houses, prorogues them and dissolves the Lok Sabha
- The President acts on the PM's advice
- Meanings:
  - Summon = call the House to meet
  - Prorogue = end a session
  - Dissolve = end the House itself
- Only the Lok Sabha can be dissolved; Rajya Sabha is a permanent house (continuing chamber)

- Lok Sabha can be dissolved before 5 years; this has happened many times
- Lok Sabha term can be extended by one year during a National Emergency

Q22. Which of the following is NOT one of the factors that the Prime Minister should consider when selecting ministers for the Union Council of Ministers in India?

RRB NTPC Graduation CBT-01 2024 (24 Jun, 2025 Shift 3)

A. Representation of foreign communities
B. Individual capacity and capability
C. Geographical representation
D. Representation of backward classes

- PM looks at:
  - Individual capacity and capability
  - Geographical representation (for example, the North-East; Kiren Rijiju comes from there)
  - Representation of backward classes
- Foreign communities are not a factor, as there is no such representation to check

Q23. Which of the following correctly represents the three-tier structure of the Council of Ministers?

NTPC Graduation CBT-01 2025-26 (16 Mar, 2026 Shift 2)

A. Chief Ministers – State Ministers – Deputy Chief Ministers
B. Cabinet Ministers – Ministers of State – Deputy Ministers
C. Cabinet Ministers – Deputy Ministers – Governors
D. Prime Minister – Ministers of State – Cabinet Ministers

- Cabinet Ministers: the core; hold top, important portfolios
  - Examples: Amit Shah, Rajnath Singh, Nirmala Sitharaman, S. Jaishankar
- Ministers of State: second tier

- Deputy Ministers: lowest tier
- This classification is not mentioned anywhere in the Constitution; it is only the working structure

Q24. Which of the following is the correct descending order of ministerial ranks in the Union Council of Ministers, as per Indian practice?

RRB NTPC UG CBT-01 2024 (07 Aug, 2025 Shift 3)

A. Cabinet Minister → Deputy Minister → Minister of State
B. Minister of State → Cabinet Minister → Deputy Minister
C. Deputy Minister → Minister of State → Cabinet Minister
D. Cabinet Minister → Minister of State → Deputy Minister

- Order from top to bottom: Cabinet Minister, then Minister of State, then Deputy Minister

Q25. Which of the following statements correctly distinguishes between the Cabinet and the Council of Ministers?

RRB NTPC UG CBT-01 2024 (11 Aug, 2025 Shift 3)

A. The Cabinet is not part of executive, but Council is part of executive
B. The Cabinet is larger and includes all ministers, Council is smaller
C. Cabinet includes senior ministers, while Council includes all categories
D. The Council of Ministers does not include the Prime Minister

- Council of Ministers includes every category:
  - Cabinet Ministers
  - Ministers of State
  - Ministers of State (Independent Charge)
  - Deputy Ministers
- Cabinet includes only the senior ministers

- The word "Cabinet" is written and defined in Art 352, added by the 44th Constitutional Amendment Act

- Shadow Cabinet: the Opposition's parallel cabinet, ready to take over if the government changes
  - Not mentioned in the Constitution
- Kitchen Cabinet: a small inner circle within the Cabinet, the people closest to the PM
  - Some big decisions may be known only to this group
  - Example given: the removal of Article 370

Q26. In what way does the Union Cabinet differ from other government committees?

NTPC Graduation CBT-01 2025-26 (27 Mar, 2026 Shift 2)

A. It is elected by the public
B. It functions independently of the Prime Minister
C. It serves as supreme decision-making body of the executive branch
D. It includes members of the judiciary

- Union Cabinet is the supreme decision-making body of the executive branch

Q27. Which of the following statements is true about the role of Cabinet Ministers in India?

NTPC Graduation CBT-01 2025-26 (17 Mar, 2026 Shift 1)

A. They are not involved in policy decisions.
B. They only assist other ministers in their duties.
C. They head important ministries like Home, Defence, and Finance.
D. They do not attend Cabinet meetings

- Cabinet Ministers hold the top-rank ministries, such as Home, Defence and Finance
- They are involved in policy decisions
- Assisting other ministers is the role of Ministers of State, not Cabinet Ministers

Q28. In the ministerial hierarchy in India, Ministers of State generally have:

RRB NTPC Graduation CBT-01 2024 (09 Jun, 2025 Shift 2)

A. authority over the Cabinet portfolios
B. no executive responsibility in any of the portfolios
C. secondary rank within the portfolios assigned to Cabinet Ministers
D. equal standing with Cabinet Ministers in their assigned portfolios

- A simple Minister of State is attached to a Cabinet Minister's ministry
- He reports to that Cabinet Minister and works under him
- Example: the MoS for Home is attached to the Home Minister

- MoS (Independent Charge) is different; the question is about the attached MoS (see next question)

Q29. In some cases, the Prime Minister of India assigns an independent charge of a portfolio to a Minister of State. This implies that the Minister of State:

RRB NTPC Graduation CBT-01 2024 (19 Jun, 2025 Shift 1)

A. is demoted in responsibilities
B. loses the title of Minister of State
C. serves jointly with a Cabinet Minister to share responsibilities
D. functions as if in Cabinet rank with full independent responsibility

- MoS (Independent Charge) works in the ministry but independently
- He has full independent responsibility
- He does not report to any Cabinet Minister
- Example: Jitendra Singh is attached for some ministries and holds independent charge for others
- Remember: an attached MoS is just called Minister of State; one with independent charge is called Minister of State (Independent Charge)

Q30. Which of the following powers is exercised by the Union Council of Ministers in India?

RRB NTPC UG CBT-01 2024 (19 Aug, 2025 Shift 2)

A. Conducting judicial reviews
B. Supervising state legislatures
C. Declaring war
D. Framing policies and advising the President

- Council of Ministers frames policies and advises the President (Art 74)
- Judicial review is done by the judiciary
- Supervising state legislatures is not a function of the Union Council

Q31. The Union Council of Ministers in India, as the Chief Executive Organ, implicates which of the following?

RRB NTPC Graduation CBT-01 2024 (20 Jun, 2025 Shift 2)

A. Ministers leave all operations to be done by civil servants
B. Centralisation of power in local bodies
C. Each minister is the political head of his/her ministry
D. The abolition of the role of the Secretary

- Each minister is the political head of his or her own ministry

Q32. Who among the following was the first Union Finance Minister of Independent India?

NTPC Graduation CBT-01 2025-26 (22 Mar, 2026 Shift 2)

A. Rajkumari Amrit Kaur
B. Dr. CH Bhabha
C. RK Shanmukham Chetty
D. Sardar Baldev Singh

- R.K. Shanmukham Chetty was Finance Minister in the first cabinet
- Rajkumari Amrit Kaur was Health Minister and the only woman in the cabinet
- C.H. Bhabha was Commerce Minister
- Baldev Singh was Defence Minister

- Other members of the first cabinet:
  - Nehru: PM, also External Affairs and Commonwealth Relations
  - Sardar Patel: Home
  - Rajendra Prasad: Food and Agriculture
  - Maulana Abul Kalam Azad: Education (first Education Minister)
  - B.R. Ambedkar: Law
  - Jagjivan Ram: Labour
  - John Mathai: Railways
  - Syama Prasad Mukherjee: Industry and Supply

- On John Mathai's recommendation the Estimates Committee was set up in 1950, the first after Independence
  - It has 30 members, all from the Lok Sabha
- Public Accounts Committee and Committee on Public Undertakings: 22 members each (15 from Lok Sabha, 7 from Rajya Sabha)
- Exam tip: the full cabinet list does not need to be memorised

Q33. 'Effect of Proclamation of Emergency' is explicitly provided in which of the following provisions of the Constitution of India?

NTPC UG CBT-01 2025-26 (08 May, 2026 (12:45 PM - 2:15 PM)

A. Article 350
B. Article 353
C. Article 256
D. Article 252

- Art 352 - National Emergency
- Art 353 - effect of the proclamation
- Main effect: the federal structure turns into a unitary structure
  - In a federal set-up, States have powers of their own
  - In a unitary set-up, States do not; power gets concentrated at the Centre

- Emergency provisions are in Part XVIII
- National Emergency has been declared 3 times:
  - 1962 - war with China (external)
  - 1971 - war with Pakistan (external)
    - The 1965 war did not need a new proclamation, as the 1962 emergency was already in force
  - 1975 - internal disturbance; imposed on 25 June 1975
- Revocation: the President can revoke it on his own at any time
  - It must also be revoked if the Lok Sabha passes a resolution by simple majority

Q34. A national emergency must be approved by Parliament within _____.

NTPC UG CBT-01 2025-26 (15 Jun, 2026 (4:30 PM - 6:00 PM)

A. 45 Days
B. 30 Days
C. 90 Days
D. 60 Days

- President proclaims the emergency
- Parliament must approve it within 30 days
- Approval needs a special majority

Q35. The phrase "internal disturbance" in the Emergency provisions of the Constitution of India was replaced with which term?

NTPC UG CBT-01 2025-26 (18 Jun, 2026 (9:00 AM - 10:30 AM)

A. Civil unrest
B. Armed rebellion
C. National instability
D. Internal security threat

- The 1975 Emergency was imposed on the ground of internal disturbance
- The 44th Constitutional Amendment replaced internal disturbance with armed rebellion
- So now emergency cannot be declared for internal disturbance; it can be declared for armed rebellion

Q36. Which Amendment made written Cabinet advice mandatory for Emergency in India?

NTPC UG CBT-01 2025-26 (16 Jun, 2026 (12:45 PM - 2:15 PM)

A. 26th Amendment
B. 24th Amendment
C. 44th Amendment
D. 42nd Amendment

- In 1975, Indira Gandhi advised the President, Fakhruddin Ali Ahmed, to impose the Emergency on 25 June without consulting her Cabinet
- The 44th Amendment later made Cabinet advice (in writing) compulsory before the PM advises the President on Emergency
- The 44th Amendment also defined the word "Cabinet" (Art 352)

- 24th Amendment, 1971:
  - Parliament can amend Fundamental Rights
  - No presidential veto on a constitutional amendment bill
- 26th Amendment, 1971: abolished privy purses (pension of the rulers of princely states)
- 42nd Amendment, 1976: called the Mini Constitution because of its many major changes
  - Lok Sabha term raised from 5 years to 6 years (restored back to 5yr by 44th CAA of 1978)
  - Fundamental Duties added
  - Made Council of Ministers' advice binding on the President

Q37. Suspension of enforcement of Fundamental Rights except Articles 20 and 21 occurs under which Article of the Indian Constitution?

NTPC UG CBT-01 2025-26 (09 May, 2026 (9:00 AM - 10:30 AM)

A. Article 359
B. Article 353
C. Article 352
D. Article 360

- Art 19 freedoms still in force: clauses (a), (b), (c), (d), (e) and (g)
  - Speech and expression; assembly; forming associations; free movement; residence and settlement; any occupation or profession
  - Clause (f) (property) was removed by the 44th Constitutional Amendment Act, 1978; property is now a legal right (in Part XII)
- Art 20 - protection in respect of conviction for offences:
  - No ex post facto law
  - No double jeopardy
  - No self-incrimination
- Art 21 - right to life and personal liberty

- Two Articles deal with suspension of Fundamental Rights in an emergency: Art 358 and Art 359
- Art 358: the six freedoms of Art 19 are suspended
  - Applies only when the emergency is on the ground of war or external aggression
  - Not suspended if the emergency is on the ground of armed rebellion
- Art 359: right to move the court for other Fundamental Rights is suspended
  - The rights still exist, but the person cannot go to court if they are violated
- Art 20 and Art 21 can never be suspended, whatever the ground of emergency
- Provision borrowed from the Weimar Constitution of Germany

Q38. What was the main purpose of the Commission of Inquiry, appointed by the Janata Party government in May 1977?

NTPC UG CBT-01 2025-26 (13 Jun, 2026 (4:30 PM - 6:00 PM)

A. To assess the impact of the Emergency on civil liberties
B. To examine allegations of abuse of authority during the Emergency
C. To investigate the economic policies of the previous government
D. To evaluate the effectiveness of the Janata Party government

- Shah Commission, set up in May 1977
- It examined how power and authority were abused during the Emergency
  - Many Opposition leaders were jailed
- Its chairman was not Amit Shah; it was a different Shah

- After the 1977 election, Morarji Desai (Janata Party) became PM
- The party then split; Charan Singh became PM
  - Indira Gandhi first supported him, then withdrew support

Q39. What is the maximum total duration for which President's Rule can continue in a State under Article 356, subject to parliamentary approvals?

NTPC Graduation CBT-01 2025-26 (22 Mar, 2026 Shift 3)

A. Up to three years
B. Up to two years
C. Up to four years
D. Up to one year

- Maximum 3 years
- Normally it lasts up to 1 year
- Beyond 1 year, it can be extended only in two cases:
  - A National Emergency is in force in the whole country (or the State)
  - The Election Commission of India says elections cannot be held there as conditions are not suitable

- Three types of emergency:
  - Art 352 - National Emergency
  - Art 356 - State Emergency (President's Rule)
  - Art 360 - Financial Emergency
- The words "state emergency" are not used in the Article; it is called President's Rule

Q40. After proclamation, Financial Emergency must be approved within how many months by Parliament?

NTPC UG CBT-01 2025-26 (19 Jun, 2026 (9:00 AM - 10:30 AM)

A. Approved by both Houses of Parliament within One month
B. Approved by both Houses of Parliament within Two months
C. Approved by both Houses of Parliament within Three months
D. Approved by both Houses of Parliament within Six months

- Art 360 - Financial Emergency
- Both Houses must approve it within 2 months
- Same 2-month limit applies to President's Rule

- Effect: Fundamental Rights are not affected
- The salaries of government employees, including judges, can be reduced by the President
- Financial Emergency has never been imposed so far

Q41. Which Constitutional Amendment introduced a cap on the size of the State Council of Ministers?

RRB NTPC UG CBT-01 2024 (19 Aug, 2025 Shift 1)

A. 73rd Constitutional Amendment Act, 1992
B. 91st Constitutional Amendment Act, 2003
C. 61st Constitutional Amendment Act, 1988
D. 42nd Constitutional Amendment Act, 1976

- 61st Amendment, 1988: voting age reduced from 21 to 18
- 73rd Amendment, 1992: added Part IX and the 11th Schedule (panchayats)

- 91st Amendment, 2003 added sub-clauses (1A) and (1B) to Art 75(1)
- Size cap: Council of Ministers cannot exceed 15% of the strength of the lower House (Lok Sabha at the Centre), including the PM
- A member disqualified for defection is also disqualified from being a minister
- States:
  - Maximum 15% of the Legislative Assembly
  - Minimum 12 ministers in every State
  - Centre has no minimum
- Delhi: cap is 10% of the Legislative Assembly (69th Amendment)

Q42. After a Constitution Amendment Bill relating to the Directive Principles of State Policy is passed by the Parliament, what is the next mandatory constitutional step for it to become a law?

NTPC Graduation CBT-01 2025-26 (16 Mar, 2026 Shift 1)

A. Approval by the Supreme Court
B. Ratification by State Legislatures
C. President's Assent
D. Notification in the Gazette

- After both Houses pass it, the President must give assent
- On an amendment bill the President has no veto; assent is compulsory
- State ratification is not needed for Fundamental Rights or DPSP; only a special majority in Parliament

- Amendment is in Part XX, Art 368
- Two types of amendment under Art 368:
  - Special majority of Parliament
  - Special majority + ratification by at least half of the States (by simple majority)
- Ratification by States is needed when a federal feature changes:
  - Election of the President
  - Changes related to the Supreme Court and High Courts
  - Seventh Schedule (Union, State and Concurrent Lists)
  - Art 368 itself
- An ordinary bill passes in three stages: it is introduced, then discussed and amended, then voted

Q43. Which of the following provisions of the Constitution of India specifies the power of Parliament to amend the Constitution?

NTPC UG CBT-01 2025-26 (20 Jun, 2026 (4:30 PM - 6:00 PM)

A. Article 356
B. Article 352
C. Article 368
D. Article 370

- Article 368 (Part XX) gives Parliament the power to amend the Constitution
- Other options:
  - Art 356 - President's Rule
  - Art 352 - National Emergency
  - Art 370 - special status of Jammu and Kashmir; already repealed

Q44. Which of the following Amendments to the Constitution of India allows both the centre and states to levy the Goods and Services Tax (GST)?

NTPC UG CBT-01 2025-26 (18 Jun, 2026 (9:00 AM - 10:30 AM)

A. 101st Amendment, 2016
B. 67th Amendment, 1990
C. 74th Amendment, 1992
D. 80th Amendment, 2000

- 101st Amendment, 2016
- Art 279A: set up the GST Council as a constitutional body
- GST Council:
  - 33 members
  - Centre: 1/3 voting power
  - States: 2/3 voting power
  - Any decision needs a 3/4 majority

Q45. The Constitution (Ninety-Fifth Amendment) Act of 2009 extended reservation of seats in Lok Sabha & Assemblies for SC, ST, and Anglo-Indians for how many years?

NTPC Graduation CBT-01 2025-26 (25 Mar, 2026 Shift 2)

A. Twenty Years
B. Fifteen Years
C. Five Years
D. Ten Years

- 95th Amendment, 2009 extended the reservation by 10 years
- SC/ST reservation in the Lok Sabha (Art 330) and Assemblies (Art 332)

- Anglo-Indian nomination:
  - Art 331: President nominates 2 Anglo-Indians to the Lok Sabha
  - Art 333: 1 Anglo-Indian nominated to the Legislative Assembly

- 104th Amendment, 2019:
  - Ended Anglo-Indian nomination completely
  - Extended SC/ST reservation by another 10 years

Q46. Articles 245 to 255 of Part XI of the Indian Constitution primarily deal with which aspect of Centre-State relations?

(NTPC UG CBT-01 2025-26 | 09 May, 2026, 12:45 PM-2:15 PM)

A. Financial Relations
B. Judicial Relations
C. Administrative Relations
D. Legislative Relations

- Centre-State relations are covered across two Parts of the Constitution: Part XI and Part XII
- Part XI deals with Legislative Relations (Articles 245 to 255) and Administrative Relations (Articles 256 to 263)
- Part XII deals with Financial Relations (Articles 268 to 293)
- Legislative relations specify when and how the Union and States can legislate
- Examples where Parliament can make laws on State List subjects: Articles 249, 250, 252, and 253

- Quick revision of Parts V to XII of the Constitution:
  - Part V: The Union
  - Part VI: The States
  - Part VII: Repealed by the 7th Constitutional Amendment Act, 1956
  - Part VIII: The Union Territories
  - Part IX: The Panchayats
  - Part IXA: The Municipalities
  - Part IXB: The Co-operative Societies
  - Part X: The Scheduled and Tribal Areas
  - Part XI: Relations between the Union and the States (Legislative & Administrative)
  - Part XII: Finance, Property, Contracts and Suits (Financial Relations)

Q47. Which Article of the Indian Constitution deals with the distribution of legislative powers between the Union and the States?

(RRB NTPC UG CBT-01 2024 | 04 Sept, 2025 Shift 1)

A. Article 368
B. Article 280
C. Article 246
D. Article 263

- Article 246 deals with the subject-matter of laws made by Parliament and by the Legislatures of States, distributed across three lists in the Seventh Schedule:
  - List I (Union List): Union (Parliament) has exclusive power to make laws
  - List II (State List): States have power to make laws
  - List III (Concurrent List): Both Union and States can make laws

- Article 248: Residuary powers of legislation
  - Any subject not mentioned in any of the three lists (Union, State, or Concurrent) falls under residuary powers
  - Only Parliament has the power to make laws on residuary subjects
  - Borrowed from the Canadian Constitution (where the Centre is strong)
- Article 254: Inconsistency between laws made by Parliament and laws made by the Legislatures of States (Doctrine of Repugnancy)

- Other options:
  - Art 368: Amendment of the Constitution
  - Art 280: Finance Commission
  - Art 263: Inter-State Council

Q48. Under Article 254(2) of the Constitution, a State law repugnant to a Central law on a subject in the Concurrent List can prevail in that State if:

(RRB NTPC UG CBT-01 2024 | 03 Sept, 2025 Shift 3)

A. It is approved by the Supreme Court
B. It is passed by a special majority in the State Legislature
C. It has been reserved for the consideration of the President and has received his assent
D. The Chief Minister gives special assent to it

- Article 254 deals with the Doctrine of Repugnancy (when both Centre and State make conflicting laws on a Concurrent List subject, the Central law normally prevails)
- Exception under Article 254(2): A State law repugnant to a Central law can prevail in that State if the bill was reserved for the consideration of the President and received the President's assent
- Remember: Article 200 empowers the Governor to reserve a State bill for the consideration of the President

Q49. Which constitutional provision empowers the Government of India (Union) to give directions to a State in certain matters?

(NTPC Graduation CBT-01 2025-26 | 17 Mar, 2026 Shift 3)

A. Article 256
B. Article 280
C. Article 368
D. Article 263

- Article 256: The executive power of every State shall be so exercised as to ensure compliance with the laws made by Parliament, and the Union is empowered to give necessary directions to a State for that purpose

- Connection between Articles 355, 356, and 365 regarding President's Rule:
  - Article 355 imposes a duty on the Union to protect every State against external aggression and internal disturbance and to ensure that the government of every State is carried on in accordance with the Constitution
  - President's Rule under Article 356 can be imposed on two grounds:
    - Article 356 itself: Breakdown of constitutional machinery in the State
    - Article 365: Where any State has failed to comply with, or to give effect to, any directions given in the exercise of the executive power of the Union

Q50. The Inter-State Council is constituted under which Article of the Constitution of India?

(RRB NTPC UG CBT-01 2024 | 22 Aug, 2025 Shift 2)

A. Article 262
B. Article 263
C. Article 280
D. Article 368

- Article 263 provides for the establishment of an Inter-State Council (making it a constitutional body)
- Established by the President of India
- Formed on the recommendation of the Sarkaria Commission (constituted in 1983)
- The first Inter-State Council was established in 1990

- Punchhi Commission (2007) was also set up to examine Centre-State relations
- Other options:
  - Art 280: Finance Commission
  - Art 368: Constitutional Amendment
- Crucial distinction between Article 263 and Article 262:
  - Article 263 (Inter-State Council): A constitutional body established by the President
  - Article 262 (Adjudication of disputes relating to waters of inter-State rivers or river valleys):
    - Empowers Parliament to provide by law for the adjudication of inter-state water disputes (e.g., Cauvery water dispute between Tamil Nadu and Karnataka)
    - Under this, Parliament enacted the Inter-State Water Disputes Act, creating Water Disputes Tribunals
    - Because a Water Disputes Tribunal is created by an Act of Parliament, it is a statutory body (not a constitutional body)
    - Under Art 262(2), Parliament may by law debar the Supreme Court or any other court from exercising jurisdiction in respect of any such water dispute; the tribunal's decision is final and binding

Q51. Which Article of the Constitution empowers the Parliament to make grants to the States which are in need of financial assistance?

(NTPC UG CBT-01 2025-26 | 08 May, 2026, 12:45 PM-2:15 PM)

A. Article 255
B. Article 265
C. Article 275
D. Article 285

- Article 275 empowers Parliament to provide grants-in-aid (अनुदान) from the Consolidated Fund of India to such States as Parliament may determine to be in need of assistance

- Elimination trick using Article ranges:
  - Financial relations between the Centre and States run from Article 268 to 293 (Part XII)
  - Article 255 falls under Legislative Relations (245-255), and Article 265 is outside the 268-293 range, eliminating both immediately

Q52. How do Centre-State financial relations impact governance in India?

(NTPC Graduation CBT-01 2025-26 | 17 Mar, 2026 Shift 1)

A. By providing states with unlimited financial resources
B. By centralising all tax revenues at the centre
C. Through mechanisms like the Finance Commission that allocate resources
D. By eliminating the need for state budgets

- Centre-State financial relations work through constitutional mechanisms like the Finance Commission (under Article 280), which recommends the allocation and distribution of financial resources (vertical and horizontal devolution) between the Union and the States

- NITTO
  - Options with extreme keywords like "unlimited financial resources", "centralising all tax revenues", or "eliminating the need for state budgets" can be easily eliminated

Q53. The Punchhi Commission (2007) was primarily constituted to examine and make recommendations regarding which provision of the Constitution?

(NTPC UG CBT-01 2025-26 | 09 May, 2026, 4:30 PM-6:00 PM)

A. Fundamental Rights
B. Centre-State Relations
C. Electoral Reforms
D. Panchayati Raj Institutions

- The Punchhi Commission (2007) was constituted by the Central Government to examine Centre-State relations

- Major commissions on Centre-State Relations:
  - Rajamannar Committee (1969): Set up by the DMK Government of Tamil Nadu (the very first committee on Centre-State relations; its recommendations were not accepted by the Central Government)
  - Sarkaria Commission (1983): Set up by the Central Government (recommended the establishment of the Inter-State Council, which was formed in 1990)
  - Punchhi Commission (2007): Set up by the Central Government



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